

CASE SUMMARY

State v. Devi Prasan

SC No. 325/2024 | FIR No. 120/2024, PS Inder Puri | Court of the Addl. Sessions Judge-04, New Delhi District, Patiala House Courts, New Delhi

COURT

Court of the Additional Sessions Judge-04, New Delhi District, Patiala House Courts, New Delhi

JUDGE

Sh. Syed Zishan Ali Warsi, Addl. Sessions Judge-04

DATE OF JUDGMENT

5 June 2026 (date of offence: 17 February 2023; charge framed: 13 October 2025)

PARTIES

State v. Devi Prasan S/o Sh. Raj Kumar, R/o Village Radhana, District Jind, Haryana — prosecution initiated on the complaint of Tata Power Delhi Distribution Ltd. (TPDDL)

STATUTES INVOKED

Sections 135, 150 & 154(5), Electricity Act, 2003 (and third proviso to s. 135(1)); Section 24, IPC; Sections 65B & 106, Indian Evidence Act, 1872; Sections 294 & 313, Cr.P.C.; Sections 35(3) & 180, BNSS; Regulations 60–63, DERC (Supply Code) Regulations

RESULT

Convicted under Section 135, Electricity Act, 2003; additionally held liable for civil liability under Section 154(5). Matter posted for hearing on sentence and determination of civil liability under Section 154.

CHARGE BEFORE THE COURT

Whether the accused Devi Prasan dishonestly abstracted electricity by directly tapping the LT Network Distribution Box near TPDDL Pole No. 1304-12/7/1/4 to feed the internal load of an unauthorised jhuggi opposite H. No. WZ-462, Village Todapur, Dasghara, so as to attract Section 135(1)(a) of the Electricity Act, 2003; and whether he discharged the onus cast on him by the presumption in the third proviso to Section 135(1) read with Section 106 of the Evidence Act, his defence being that he was a mere passer-by coerced into signing the inspection papers and that the jhuggi and its contents were not his.

FACTS

On 17 February 2023, in daytime, an enforcement team of TPDDL — deputed by PW-1 R.K. Singh (Head of Group, CEG Enforcement) and led at site by PW-2 Rakesh Batra with Shubham Shukla, K.K. Chauhan and Aynjaney Sarang, accompanied by photographer Chirag Yadav of M/s Shagun Photo Studio — inspected an unauthorised jhuggi opposite H. No. WZ-462, near the pump house, Village Todapur, Dasghara (PS Inder Puri). The accused was found drawing supply by direct hooking from near TPDDL Pole No. 1304-12/7/1/4 through one two-core black wire connected onward to two multi-strand aluminium wires (yellow, blue and black); the entire connected load — assessed at 7.408 KW and comprising a concrete mixer, heater, e-rickshaw charging, LED bulb and submersible pump — ran on the illegal wires. The accused signed the inspection report at the spot; the accessible wires were seized under a seizure memo also bearing his signature; 24 photographs were taken and a Section 65B certificate furnished. The stolen electricity was valued at Rs. 3,79,124/-. On R.K. Singh's complaint the FIR was registered on 5 May 2024

under Sections 135/150; HC Ajit Singh investigated, served a Section 41A Cr.P.C./35(3) BNSS notice, and filed the charge-sheet on 31 August 2024. A formal charge under Section 135 was framed on 13 October 2025, to which the accused pleaded not guilty.

The prosecution examined six witnesses — PW-1 R.K. Singh (complainant), PW-2 Rakesh Batra (team leader), PW-3 Shubham Shukla and PW-4 K.K. Chauhan (team members), PW-5 Chirag Yadav (photographer, proving the 24 photographs and the 65B certificate), and PW-6 HC Ajit Singh (IO) — the FIR, rukka endorsement and GD having been admitted by the accused under Section 294 Cr.P.C., and one team member being dropped as repetitive. The seized wires (Ex. P-1 colly.) were produced and identified in court. Under Section 313 Cr.P.C. the accused pleaded false implication: he was just passing through, was forced to sign papers under coercion, and neither the jhuggi nor its contents (including the two e-rickshaws photographed charging) belonged to him. In defence he examined DW-1 Kuldeep, his cousin, who deposed that the accused had lived and worked with him since September 2022 at an address 200–300 metres from the spot, producing his own Aadhaar card and a photocopy of a rent agreement (Mark DW1/B).

REASONING OF THE COURT

HEADNOTE

Direct tapping from the licensee’s LT network distribution box to run the load of an unmetered jhuggi is theft under Section 135(1)(a); once the unauthorised means is proved, the third proviso to Section 135(1), reinforced by Section 106 of the Evidence Act, shifts the onus to the accused, and a passer-by defence supported only by a relative’s bald testimony and an unproved photocopy rent agreement does not discharge it. The accused’s signature on the inspection report — and photographs showing him signing — established his presence and user status; refusal of local residents to join the inspection, recorded contemporaneously, excused the absence of a public witness.

“Beyond reasonable doubt” means moral certainty, not the elimination of every conceivable doubt. The Court anchored the standard of proof in *State of Haryana v. Bhagirath*, AIR 1999 SC 2005, *Shivaji Sahebrao Bobade v. State of Maharashtra*, 1974 (1) SCR 489, and *Municipal Corporation of Delhi v. Ram Kishan Rohatgi*, AIR 1983 SC 67 — a reasonable doubt is an honestly entertained doubt arising from a fair consideration of all the evidence, and the golden thread of proof beyond reasonable doubt must not be “stretched morbidly to embrace every hunch, hesitancy and degree of doubt.”

Only clause (a) of Section 135(1) was engaged, and its four ingredients framed the analysis. Clauses (b)–(e) (meter tampering and allied acts) had no factual foundation. The Court enumerated the operative ingredients: (i) dishonest intention — defined via Section 24 IPC as intending wrongful gain to one or wrongful loss to another; (ii) tapping or causing a connection with the licensee’s lines or cables; (iii) the accused being the user or consumer of the electricity so abstracted; and (iv) punishability with imprisonment up to three years, fine, or both. Tapping the LT distribution box to feed the jhuggi’s load was held dishonest per se — wrongful gain to the accused, wrongful loss to TPDDL.

The presumption under the third proviso, reinforced by Section 106 of the Evidence Act, shifted the onus once the tap was proved. On proof of an artificial or unauthorised means of abstraction, dishonest consumption is presumed “until the contrary is proved”; and since what ran inside the jhuggi was a fact especially within the occupant’s knowledge, Section 106 placed the burden of explaining it on him.

The inspection team’s mutually corroborative testimony — and the accused’s own signatures — proved the theft. PW-2, PW-3 and PW-4 deposed identically to the direct hooking from the pole-side distribution box, the wire chain, the 7.408 KW load and the seizure; PW-5 proved the 24 photographs with a 65B certificate; and cross-

examination left the factum of inspection, the accused's presence, and the seizure unimpeached. The accused's signature at point E of the inspection report, and photographs showing him signing the documents, refuted the coercion plea. The defence's contradiction argument (distribution box in the report versus "pole" in testimony) and its no-load-recorded argument both failed — page 2 of the inspection report itemised the concrete mixer, heater, e-rickshaw, LED bulb and submersible pump aggregating 7.408 KW, all visible in the photographs, with the pole-to-premises line traceable across multiple frames.

The passer-by defence and DW-1's testimony could not discharge the shifted onus. DW-1 Kuldeep's statement that the accused resided with him was a bald assertion: the accused produced no address proof of his own, and the rent agreement was a mere photocopy, unattested, without notarial particulars, and not proved per law. No complaint of false implication was ever lodged, and no material suggested animosity by the inspection team or the IO. During investigation the accused had himself told the IO he owned the premises, and neighbours said the same informally though none would depose.

Non-joining of a public witness was explained and excused. The inspection report itself recorded that locals were asked but refused to join, and PW-2, PW-3 and PW-4 each said so in cross-examination. On *Sushil Sharma v. BSES Rajdhani*, 2011 (1) JCC 665, non-examination of an independent witness is no infirmity where the inspecting officials bear no enmity and their testimony is trustworthy; no procedural lapse under DERC Regulations 60–63 was even suggested.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1)(a) — Theft of Electricity

The Court isolated clause (a) as the only limb engaged and broke it into four ingredients: dishonest intention (via Section 24 IPC); a tap or connection with the licensee's lines, cables or service facilities; the accused being the user/consumer of the abstracted electricity; and the prescribed punishment. Direct tapping from an LT Network Distribution Box to run an unmetered jhuggi's load satisfies all of them.

Third Proviso to Section 135(1) — Presumption of Dishonest Use

On proof of an artificial/unauthorised means of abstraction, dishonest abstraction is presumed until the contrary is proved. The Court read the proviso together with Section 106 of the Evidence Act — the source of the supply running the occupant's appliances being a fact especially within his knowledge — so that the two presumptions jointly shifted a real evidentiary onus onto the accused, dischargeable only by cogent and credible evidence, not a bald defence.

Section 154(5) — Civil Liability

On conviction, the Special Court may additionally fix civil liability for the electricity illegally used. The Court held the accused liable under Section 154(5) alongside the conviction and posted the matter for determination of that liability with sentence — treating the criminal conviction and the civil recovery as companion outcomes of the same trial.

DERC (SUPPLY CODE) REGULATIONS — REGULATIONS 60 TO 63

The Court reproduced Regulations 60–63 — the inspection power with identification safeguards (Reg. 60), the contemporaneous report with seizure, sealing and photo/video documentation (Reg. 61), the prosecution procedure with the 24-hour police complaint and missing-seal caution (Reg. 62), and the assessment at twice tariff for up to twelve months (Reg. 63) — and found the inspection compliant: the report was signed by and copied to the accused,

the refusal of locals to join was recorded as Reg. 61 contemplates, and no procedural violation was suggested in cross-examination.

HELD

The prosecution proved beyond reasonable doubt that Devi Prasan dishonestly abstracted electricity by directly tapping the LT Network Distribution Box to run the 7.408 KW load of the unauthorised jhuggi. The accused failed to discharge the onus cast by the third proviso to Section 135(1) and Section 106 of the Evidence Act. He is **convicted under Section 135 of the Electricity Act, 2003, and additionally held liable for civil liability under Section 154(5)**; the matter is posted for hearing on sentence and determination of the civil liability under Section 154.

SIGNIFICANCE

A full-dress contested trial — complete with a defence witness — that shows how the reverse-onus architecture of the Electricity Act deals with the commonest defence in jhuggi-cluster theft cases: “I was just passing by.” Six propositions stand out:

- **A signed inspection report is powerful proof of presence and user status.** The accused’s signature on the report and seizure memo — captured in photographs as he signed — anchored the finding that he was the user, and reduced the coercion plea to assertion.
- **The passer-by defence needs documents, not relatives.** A cousin’s testimony that the accused lived elsewhere, backed only by an unattested photocopy rent agreement not proved per law and no address proof of the accused’s own, cannot discharge the shifted onus.
- **Proviso III and Section 106 IEA operate in tandem.** The statutory presumption of dishonest abstraction and the especial-knowledge burden together require the occupant to explain the source running his appliances — silence or bald denial convicts.
- **A recorded refusal answers the public-witness objection.** Where the inspection report itself notes that locals were asked and refused, non-examination of an independent witness is no infirmity (*Sushil Sharma*).
- **Report–testimony variations must be material to matter.** “Distribution box” in the report versus “pole” in testimony was treated as no contradiction where photographs traced the line from the pole-side box to the premises.
- **Criminal conviction and civil recovery travel together.** The Court coupled the Section 135 conviction with Section 154(5) civil liability, to be quantified at the sentencing stage — a reminder that acquittal of the bill is not implicit in contesting the charge.

CITATIONS

The standard-of-proof authorities were invoked by the Court itself; *Sushil Sharma* answered the defence’s public-witness objection. Neither side cited other authority.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>State of Haryana v. Bhagirath</i> AIR 1999 SC 2005; (1999) 5 SCC 96	Proof beyond reasonable doubt equates to moral certainty; a reasonable doubt is an honestly entertained doubt on a fair consideration of all the evidence, not every possible or imaginary doubt.	Relied on

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Shivaji Sahebrao Bobade v. State of Maharashtra</i> 1974 (1) SCR 489	The benefit-of-doubt rule must not be stretched morbidly; exaggerated devotion to it at the expense of social defence is to be guarded against.	Relied on
<i>Municipal Corporation of Delhi v. Ram Kishan Rohatgi</i> AIR 1983 SC 67	Reiterates the calibrated reasonable-doubt standard applied to regulatory/criminal prosecutions.	Relied on
<i>Sushil Sharma v. BSES Rajdhani</i> 2011 (1) JCC 665 (Delhi HC)	Non-examination of an independent/public witness is no infirmity where the inspecting team bears no enmity towards the accused and its testimony is trustworthy.	Relied on

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.